

THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MUHAMMAD HASHIM KHAN KAKAR
MR. JUSTICE SALAHUDDIN PANHWAR
MR. JUSTICE ISHTIAQ IBRAHIM

JAIL PETITION NO.412 AND CRIMINAL PETITION NO.686-L OF 2018

(On appeal against the judgment dated 26.04.2018, passed by the Lahore High Court, Lahore in Criminal Appeal No.996-J of 2015 and Murder Reference No.345 of 2015).

Riaz Ahmad
(in JP No.412/2018)

Shaista Parveen
(in Criminal Petition No.686-L/2018)

...Petitioner(s)

VERSUS

The State
(in JP No.412/2018)

Riaz Ahmad
(in Criminal Petition No.686-L/2018)

...Respondent(s)

For the Petitioner(s): Mr. Muhammad Aqeel Wahid Ch. ASC
(in JP No.412/2018)

Nemo
(in Criminal Petition No.686-L/2018)

For the State : Rana Tasawar Ali Khan, APG
(in both cases)

Date of hearing: 12.02.2026

JUDGMENT

ISHTIAQ IBRAHIM, J.- The prosecution case, as set out in First Information Report (FIR) No. 449 dated 10.06.2012 (Exh.PC), registered under Sections 302, 337-A(i) and 337-L(2), PPC at Police Station Sambrial, District Sialkot by informant Muhammad Anayat (PW.10), is that on 10.06.2012 at about 10:30 a.m., he along with his son Iftikhar Ahmad (deceased), was proceeding towards his *dera* for some urgent work and when reached near the house of petitioner

Riaz Ahmad, situated in Kot Blund, the petitioner duly armed with 12-bore rifle present in the street fired at his son Iftikhar Ahmad deceased, as a result, he got hit and died on the spot. Muhammad Inayat informant (PW.10) when attempted to apprehend the petitioner, he inflicted him a butt blow with the rifle on his forehead. Upon raising hue and cry of the informant, his grandsons, namely, Umer Iftikhar (PW.11), Muhammad Yaseen along with others arrived at the scene and witnessed the occurrence. The motive alleged in the FIR was an exchange of abuses between the petitioner and the deceased prior to the occurrence.

2. Upon arrest of the petitioner and completion of investigation, a report under Section 173, Cr.P.C. was submitted against the petitioner before the Sessions Judge, Sialkot ("Trial Court"). Upon conclusion of the trial, the Trial Court, vide judgment dated 18.09.2015, convicted the petitioner under Section 302(b), PPC and sentenced him to death as *Ta'zir*, with a direction to pay compensation of Rs. 500,000/- to the legal heirs of the deceased under Section 544-A, Cr.P.C., and in default thereof to undergo six months' simple imprisonment. The petitioner was further convicted under Section 337-A(i), PPC and sentenced to two years' rigorous imprisonment with payment of Rs. 10,000/- as *daman* to injured Muhammad Anayat, and under Section 337-L(2), PPC to two years' rigorous imprisonment with payment of Rs. 10,000/- as *daman*.

3. The Lahore High Court, Lahore ("High Court"), vide judgment dated 26.04.2018, dismissed the appeal filed by the petitioner-convict, maintained his conviction under the aforesaid offences, but commuted his death sentence under Section 302(b), PPC to imprisonment for life. Consequently, Murder Reference No. 345 of 2015 was answered in the negative. Aggrieved thereof, the petitioner-convict has filed Jail Petition No. 412 of 2018 before this Court. Conversely, Mst. Shaista Parveen, widow of deceased Iftikhar Ahmad, has filed Criminal Petition No. 686-L of 2018 seeking enhancement of the sentence of the respondent-convict from

imprisonment for life to the normal penalty of death provided under Section 302(b), PPC.

4. We have given our anxious and thoughtful consideration to the arguments advanced by the learned counsel for the petitioner-convict as well as the learned Additional Prosecutor General and, with their able assistance, have carefully perused the entire record and evidence available on file.

5. On appraisal of the material brought on record, it is observed that the petitioner-convict has not denied the occurrence and presence of eyewitnesses Muhammad Anayat (PW-10) and Umar Iftikhar (PW-11) at the spot. However, he has consistently offered a defence version from the very first day of his arrest till recording his statement under section 342 Cr.P.C. As per his version, Iftikhar Ahmad deceased, was running a cable business in the village from whom he had obtained a cable connection to his house; that the said connection was onward extended by the petitioner-convict to the house of his sister-in-law (Bhabi); that the petitioner-convict was paying Rs. 250/- per month as cable charges to the deceased but despite that the deceased charged Rs. 250/- as cable fee separately from his Bhabi. On the day of occurrence, the deceased allegedly came to the house of the petitioner-convict. A verbal altercation ensued regarding the separation of the cable connection and the alleged double charging, during which course the deceased hurled abuses at the petitioner-convict and he also called his father, Haji Anayat Ullah, and his son Umer Iftikhar to the spot. Upon their arrival, Haji Anayat Ullah inflicted a danda blow on the head of the petitioner-convict, whereafter all three started assaulting the petitioner. The petitioner-convict rushed to his house, but the deceased and his companions followed him and started beating his wife and daughter, tore the clothes of his wife, and subjected her to humiliation. Noticing his wife being dishonoured within the four walls of his home, the petitioner-convict picked up his licensed 12-bore gun and resorted to an aerial fire. During the ensuing scuffle, the deceased and his companions grappled with him, and in

that process, the trigger was pressed, resulting in a single fire shot hitting the deceased.

6. The aforesaid defence plea was put to the prosecution witnesses during cross-examination. Though they denied the same, however, certain admissions on their part lend support to the defence narrative. The eyewitnesses conceded that the place of occurrence was situated in front of or near the house of the petitioner-convict and that the street was a blind lane and not a thoroughfare. They also admitted that the deceased was engaged in cable business and that the petitioner-convict was a married man having a wife and children. These admissions assume significance when the one kept in mind the place of occurrence near the house of the petitioner-convict in a street which is not a thoroughfare rather blind lane. The eyewitnesses have not furnished any explanation as to what the deceased and they were doing in the street near the house of the petitioner-convict.

7. Muhammad Ishaq, SI (PW-13), the Investigating Officer, in his cross-examination candidly admitted that the informant had not disclosed the specific place where the alleged exchange of abuses between the deceased and the petitioner-convict had taken place prior to the occurrence, which, according to the prosecution, was motive behind the crime. He further conceded that the eyewitnesses did not produce any documentary proof to establish the existence of their *dera* in the village of the petitioner-convict, nor was any independent witness was brought before him during investigation to substantiate such claim. It was also admitted that the site plan prepared during investigation does not depict any house of the eyewitnesses in the immediate vicinity of the place of occurrence. The testimony of the I.O. support the defence plea that the eyewitnesses reached the spot after being called by the deceased, as asserted by the petitioner-convict in his statement under Section 342, Cr.P.C.

8. Dr. Abdul Fateh (PW-1), who conducted the postmortem examination, noted a lacerated wound measuring 7.5 cm x 4 cm x

DNP on the front of the middle one-third of the chest, with inverted margins and blackening around the wound. On internal examination, extensive damage to vital organs including lungs, heart and stomach was found. No exit wound was present, and pellets were scattered within the chest cavity of the deceased. The presence of blackening indicate that the fire was made at the deceased from a very close range. This medical evidence is consistent with the defence plea that the shot was fired during a physical grappling between the petitioner-convict and the deceased rather than from a distance.

9. Upon a holistic reappraisal of the ocular account in juxtaposition with the medical evidence and surrounding circumstances, we are persuaded to hold that the prosecution witnesses have not presented the truthful account of the occurrence and have attempted to suppress material aspects so as to minimize the role of the deceased. The defence version, in the peculiar facts of the case, appears more probable. The material on record reveals that the occurrence took place at the threshold and within the precincts of the house of the petitioner-convict. The admitted fact that the street was a blind lane reinforces the inference that the deceased party had gone to the house of the petitioner-convict. The defence allegation that the wife of the petitioner-convict was beaten and her clothes were torn, though denied by the prosecution witnesses, finds circumstantial support from the location and immediacy of the occurrence. In our societal milieu, the honour and dignity of female members of a family are regarded as sacrosanct. An intrusion into one's house coupled with physical assault and alleged stripping of one's spouse constitutes grave and sudden provocation of the highest order. The petitioner-convict, confronted with the spectacle of his wife being humiliated inside his home, can reasonably be presumed to have lost self-control. The reaction attributed to him was immediate, without premeditation, and in the heat of passion arising out of a sudden quarrel and perceived outrage to family honour. The medical evidence establishes that only a single shot was fired and that too from close range. There was no repetition of fire.

This circumstance negates the element of pre-planning or deliberate intention to commit murder. The act appears to have been committed under grave and sudden provocation, depriving the petitioner-convict of the power of self-control. In these circumstances, the case squarely falls within the purview of Section 302(c) and not 302(b) PPC.

10. For the foregoing reasons, Jail Petition No. 412 of 2018 is converted into an appeal and is partly allowed. The conviction and sentence of the petitioner-convict under Section 302(b) PPC are set aside. Instead, he is convicted under Section 302(c) PPC and is sentenced to undergo rigorous imprisonment for twenty (20) years. The amount of compensation awarded by the Courts below and the sentence in default thereof, as well as the conviction and sentence recorded in respect of other offences, shall remain intact.

Criminal Petition No.686-L of 2018

11. On conversion of the conviction and sentence of the respondent-convict from section 302(b) to section 302(c) PPC, this petition has become infructuous which is hereby dismissed.

Judge

Judge

Judge

Islamabad
03.02.2026
NOT APPROVED FOR REPORTING
M.Siraj Afridi SPS